SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Writ Petition (Civil) No. 1362 of 2012 (YEAR: 2024)

CORAM: D.Y. CHANDRACHUD, SANJIV KHANNA, B.R. GAVAI, J.B. PARDIWALA, MANOJ MISRA

Association for Democratic Reforms
... Appellant(s) / Petitioner(s)
Versus
Union of India (Electoral Bonds)
... Respondent(s)

Acts Referred:	Constitution of India, Representation of the People Act, 1951, Companies Act, 2013
Sections:	Article 19(1)(a), Section 29C RPA

JUDICIAL HEADNOTE & SUMMARY

Constitution bench struck down the Electoral Bond Scheme as unconstitutional under Article 19(1)(a), holding that voters have a fundamental right to know political contributors.

RATIO DECIDENDI

The Court held that: Constitution bench struck down the Electoral Bond Scheme as unconstitutional under Article 19(1)(a), holding that voters have a fundamental right to know political contributors. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Association for Democratic Reforms v. Union of India (Electoral Bonds) (Writ Petition (Civil) No. 1362 of 2012) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Constitution of India, Representation of the People Act, 1951, Companies Act, 2013, particularly Article 19(1)(a), Section 29C RPA. Constitution bench struck down the Electoral Bond Scheme as unconstitutional under Article 19(1)(a), holding that voters have a fundamental right to know political contributors.

OPERATIVE ORDER

ORDER: Decided